

Thursday, January 01, 2026

Info Capsule

President

CS Dhananjay Shukla

Vice President

CS Pawan G Chandak

- **MCA to set up 03 new Regional Directorates (RDs) and 06 new Registrar of Companies (ROCs) (December 31, 2025)**

In line with the constant endeavor to provide Ease of Doing Business, Ministry of Corporate Affairs will open 03 Regional Directorates (RDs) and 06 Registrar of Companies (RoCs) with effect from 16th February, 2026. This will help in regulatory facilitation as well as giving necessary fillip to the buzzing business environment.

The existing Regional Directorate of Northern Region having HQ at Delhi and having jurisdiction over NCT of Delhi, Haryana, States of Uttar Pradesh, Himachal Pradesh, Punjab, Uttarakhand, and UTs of Chandigarh, Ladakh, J&K is being split into two. RD (NR-I) is to be headquartered at New Delhi having jurisdiction of NCT of Delhi and State of Uttar Pradesh. RD (NR-II) is to be headquartered at Chandigarh will have jurisdiction over States of Haryana, Himachal Pradesh, Punjab, Uttarakhand, and UTs of Chandigarh, Ladakh, and J&K.

For details:

<https://www.pib.gov.in/PressReleasePage.aspx?PRID=2210213&req=3&lang=1>

❖ *Ministry of Corporate Affairs*

- **The Companies (Removal of Names of Companies from the Register of Companies) Amendment Rules, 2025 (December 31, 2026)**

Ministry of Corporate Affairs has issued the Companies (Removal of Names of Companies from the Register of Companies) Amendment Rules, 2025 dated December 31, 2026. According to the amendment following proviso is added to rule 4(3):

"Provided further that in case of any other Government Company, including its subsidiaries, the indemnity bond in Form STK-3A, in respect of one or more directors appointed or nominated by the Central Government or State Government, shall be given by an authorised representative not below the rank of Under Secretary or equivalent, in the administrative Ministry or Department of the Government of India or the State Government, as the case may be, on behalf of the Company."

For details:

[https://egazette.gov.in/\(S\(fpfopu3nvlf3p1x1pisgkyk0\)\)/ViewPDF.aspx](https://egazette.gov.in/(S(fpfopu3nvlf3p1x1pisgkyk0))/ViewPDF.aspx)

- **The Companies (Appointment and Qualification of Directors) Amendment Rules, 2025 (December 31, 2026)**

Ministry of Corporate Affairs has issued the Companies (Appointment and Qualification of Directors) Amendment Rules, 2025. Which shall come into force on the 31st day of March, 2026. The amendment inter-alia provides following:

- i) In rule 11 for the words and brackets “Regional Director (Northern Region), Noida”, the words and letter “Regional Director, Northern Region Directorate I” shall be substituted;

- ii) Rule 12A is substituted as follows:

- (1) Every individual who holds a Director Identification Number as on the 31st March of a financial year, shall file KYC intimation in Form No. DIR-3 KYC Web to the Central Government on or before the 30th June of the immediately following every third consecutive financial year.
- (2) Every individual holding a Director Identification Number shall, in the event of change in his personal mobile number, email address or residential address, submit Form No. DIR-3 KYC Web within a period of thirty days of such change along with fee as provided under the Companies (Registration Offices and Fees) Rules, 2014.

For details:

[https://egazette.gov.in/\(S\(fpfopu3nvlf3p1x1pisgkyk0\)\)/ViewPDF.aspx](https://egazette.gov.in/(S(fpfopu3nvlf3p1x1pisgkyk0))/ViewPDF.aspx)

❖ **ESG Update**

Hyundai Motor Company

Response to Environmental Accidents and Regulations

- Hyundai has set in place an emergency response system to take immediate measures in the event of an environmental accident, such as air/water/waste and chemical substance leakage, based on international safety, health & environment (SH&E) standards.
- Its headquarters and each business site have an emergency response organization and emergency contact system, and also have an emergency response manual that includes the status of disaster prevention facilities and equipment aimed at responding to environmental accidents and have employees familiarize themselves with the manual.
- In addition, it has created an alternative scenario for environmental accidents and continually conduct an emergency response drill at each department.
- Environmental technology exchange meetings are held quarterly among Hyundai Motor Group, the Korea Automobile & Mobility Association (KAMA), the Korea Enterprises Federation, and the Environmental Preservation Advisory Committee, ensuring environmental personnel from each company and business site engage in structured discussions and coordinated responses to environmental regulations and related issues.

For details:

<https://www.hyundai.com/content/dam/hyundai/ww/en/images/company/sustainability/about-sustainability/2025/hmc-2025-sustainability-report-en-v11.pdf>

❖ **International Financial Services Centre Authority**

IFSCA (CMI) Regulations, 2025 – Extension of deadline for implementing revised norms for Principal Officer and Compliance Officer (December 31, 2025)

Reference may be drawn to the IFSCA (Capital Market Intermediaries) Regulations, 2025 (“CMI Regulations”) and the IFSCA circular titled “IFSCA (CMI) Regulations, 2025 - Extension of deadline for implementing revised norms for principal officer and compliance officer” issued on September 04, 2025. In the Circular, the deadline for implementation of sub-regulations (2), (3) and (8) of regulation 9 of the CMI Regulations was extended till December 31, 2025.

The Authority has, in its meeting held on December 22, 2025, approved certain amendments to the CMI Regulations relating to the appointment of Principal Officer and Compliance Officer of the capital market intermediaries. The said amendments are in the process of being notified.

In view of the above it has been decided to extend the deadline for implementation of sub-regulations (2), (3) and (8) of regulation 9 of the CMI Regulations up to January 15, 2026 or till the date of publication of the IFSCA (Capital Market Intermediaries) (Amendment) Regulations, 2026 in the Official Gazette, whichever is earlier.

For details: <https://ifsc.gov.in/Legal/Index?MId=aqwoxelfxs4=>

❖ **Business & Economy**

ONDC is transforming country's e-commerce landscape by democratising digital commerce, says Union Minister Piyush Goyal (December 31, 2025)

The Open Network for Digital Commerce (ONDC) is transforming the country's e-commerce landscape by democratising digital commerce. In a social media post, Commerce and Industry Minister Piyush Goyal said, ONDC has democratised e-commerce across products and services by enabling open participation and fostering innovation and collaboration over the past four years. He added that the initiative has strengthened trust in the digital ecosystem, benefiting both consumers and sellers by bringing small shopkeepers into the digital marketplace and widening access for all. Launched in the year 2022, ONDC is an initiative aiming at promoting open networks for all aspects of the exchange of goods and services over digital or electronic networks. It envisions creating a level playing field for sellers, buyers, and service providers across the country, particularly small and medium enterprises.

For details: <https://www.newsonair.gov.in/ondc-is-transforming-countrys-e-commerce-landscape-by-democratising-digital-commerce-says-union-minister-piyush-goyal/>

❖ **Pronouncement**

December 29, 2025	In the matter of China Gate Restaurant Private Limited (Bora Bora) regarding alleged levying of service charge, violation of Consumer Rights and Unfair Trade Practices	Central Consumer Protection Authority (CCPA) Case No. CCPA- 2/26/2025-CCPA
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Levying Service Charge by Hotels constitutes violation of Consumer Rights**Brief Facts**

CCPA has taken *suo-moto* cognizance of the grievance from registered at National Consumer Helpline 1915 (NCH) against China Gate Restaurant Private Limited (Bora Bora) ('The Restaurant' opposite party). The grievance is regarding levying of service charge 10% extra over the order value and GST on it.

Order

In the present case, CCPA inter alia observed that levying service charge by default in the bill constitutes violation of Consumer Rights under Section 2(9) (ii), (v) of the Act, 2019, misleading advertisement under Section 2 (28) (i) and (jii) of the Act, 2019 and unfair trade practice under Section 2(47) (i) of the Act, 2019. Also, levying service charge separately on food and alcohol bill apart from CGST and SGST puts consumers to disadvantage as envisaged in section 2(46)(vi) of the Act, 2019 (unfair contract).

Despite Hon'ble High Court of Delhi validating the applicability of the CCPA guidelines which is in the interest of consumers and declaring the levy of any service charge by default in a bill as contrary to law and violation of the guidelines, the Restaurant has levied service charge by default in the bill.

After careful consideration of the investigation report of DG Investigation (CCPA) and submissions of the Restaurant, CCPA arrives at the findings:

- (a) It is important to note that the genesis of the service charge in the bill is the command embedded in the billing software, leading to default addition of service charge to every bill. Therefore, it shall be erroneous to presume that the service charge It is was voluntary. This effectively negates the restaurants contention before CCPA that the service charge was voluntary. The facts and evidences in this case clearly established that the service charge was mandatorily levied on all consumers, in contravention of the CCPA guidelines and the judgement of Hon'ble High Court of Delhi.
- (b) It is further observed that the opposite party has not cooperated in the investigation process of DG Investigation (CCPA). Such non-compliances and non-cooperation in lawful proceedings was not desirable and lacks commitment towards consumer rights and interest.
- (c) In view of the above, the Restaurant is in violation of the following provisions of Consumer Protection Act 2019:
 - (i) Consumer rights under section 2(9) (i) of the Act, 2019
 - (ii) Consumer rights under section 2(9) (v) of the Act, 2019.
 - (iii) Engaging in Unfair Trade Practice as defined in section 2(47) of Act, 2019 read with section 2(46) (vi) of Act, 2019;
 - (iv) Misleading advertisement under Section 2(28) (i) and (jii) of the Act, 2019.
 - (v) Guidelines to Prevent Unfair Trade Practices and Protection of Consumer Interest with Regard to Levy of Service Charge in Hotels and Restaurants, on 4th July, 2022.

CCPA noted that China Gate Restaurants Private Limited has its presence since 1993 and has many brands such as China Gate, Tap-Resto bar, Bora Bora, Global Fusion, Caravan Serai, Red Box, Goh-jia-ting. Among these CCPA has taken action against its outlet Bora Bora which has three branches in Mumbai (supra para 15). Accordingly, it is evident that the restaurant has a substantial consumer reach and market presence, and any non-compliance of guidelines or levy of service charge by default on bill has the potential to affect a large number of consumers. Therefore, the conduct of the opposite party attracts the applicability of Section 21(7) of the Act, 2019.

CCPA inter-alia issued the following directions:

- i) To take immediate steps to modify its software generated billing system by removing default addition of service charge or charge by any other name.
- ii) Restaurant China Gate Restaurant Private Limited (Bora Bora) is directed to pay a penalty of Rs. 50, 000/- for violation of Consumer Rights and Unfair Trade Practice.

❖ **Market Watch**

Stock Market Indices as on 01.01.2026	
S & P BSE Sensex	85,188.60 (-0.04%)
Nifty 50	26,146.55 (0.06%)

Foreign Exchange Rates as on 01.01.2026 (https://m.rbi.org.in/scripts/ReferenceRateArchive.aspx)			
INR / 1 USD	INR / 1 EUR	INR / 1 GBP	INR/ 1 JPY
89.97	105.69	121.24	.57

MSME READY RECKONER**About the Book**

MSMEs have served multifarious roles as regards the Indian Economy. If one is to look back in the pages of history the struggle for free freedom was fuelled by self-reliance brought in by the khadi village Gram Udyog. If the Charkha made the wheels turn of the Indian Destiny back then, foundation of the Indian economy powering both exports and social development even today.

Year of Publication: 2024

Price: Rs. 300/-



Weblink for Purchase:

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SS-1 - SECRETARIAL STANDARD ON MEETINGS OF THE BOARD OF DIRECTORS

About the Book

Section 118(10) of the Companies Act, 2013 requires every company to observe Secretarial Standards with respect to General and Board Meetings specified by the ICSI and approved as such by the Central Government.

Secretarial Standard on Meetings of the Board of Directors (SS-1) was made applicable from 1st July, 2015 and revised version thereof was made applicable from 1st October, 2017.

Considering the legal amendments on the subject, SS-1 has been revised further by the ICSI to bring it in alignment with the provisions of the Companies Act, 2013 and rules made thereunder.

Year of Publication: 2024

Price: Rs. 70/-



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Prepared by Directorate of Academics

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